

UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW
SECOND SEMESTER EXAMINATIONS 2018/2019 SESSION

PVL 211.2 – LAW OF CONTRACT II

Instructions: Answer any FOUR Questions

Time Allowed: 3 Hours

✓ Question 1

The doctrine of privity is part of the bedrock called common law. Today however, the law has recognized that with the increasingly complex world of commerce, there must be some changes to accommodate certain exceptions to the general rule and guarantee restitution to the aggrieved. Discuss.

✓ Question 2

As a general rule, for a contract to be discharged by performance, the performance must be exact and precise. Therefore a party who undertakes partial performance has not performed the contract at all and is not discharged of the obligations imposed by the contract, and will accordingly not be entitled to any benefit accruable under the contract. To avoid the resultant hardship, the strict rule as to performance is mitigated in a number of instances. Discuss.

✓ Question 3

Advise the parties as to the following:

- (a) Mazi Ekwoanya who is a rice merchant based in Ikeja, Lagos State, placed an order for 500 bags of rice from Messrs Thaewok & Co, a rice exporting firm based in Bangkok, Thailand. However, before Messrs Thaewok was able to ship the consignment to Nigeria, the government of Nigeria banned the importation of foreign rice into the country. Upon hearing this, Mazi Ekwoanya promptly informed Messrs Thaewok of the recent development and subsequently cancelled the order. However, Messrs Thaewok is unhappy and is insisting on the enforcement of the contract between the parties. Advise Messrs Thaewok (8.5 Marks).
- (b) Assuming from the above scenario that Mazi Ekwoanya had made some payment with regard to the consignment of the rice, and promptly cancelled the order upon hearing the ban. However, Messrs Thaewok is refusing to refund him the money paid on the basis of the fact that it was not their fault that such ban was placed on the importation of rice into Nigeria. They further argued that they have incurred some expenses in packaging and bagging the rice for export. The latter was solely on the instruction of Mazi Ekwoanya since they usually sold rice by tonnage and unbagged. Advise the parties as to their respective legal position with regard to the money paid and received under a frustrated contract. (9 marks).

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Question 4

On 1 June 2018, Amadisco Construction Co Ltd, a firm of builders, contracted with Eskis Petroleum Development Company (EPDC) Ltd, to construct a duplex within the premises of the latter for the sum of 200, 000 000 naira. It was agreed that EPDC Ltd should put down a deposit of 100,000,000 naira as part payment while the rest should be paid on completion of the building. The duplex will be for the use of the newly appointed Managing Director of EPDC Ltd, who would be assuming duty on 1 February 2019. It was expressly agreed by the parties that time was of essence and hence, the house should be ready by 15 January 2019. However, by 15 January 2019, the house was not ready as it was still at the roofing stage. This made EPDC Ltd to incur extra cost in looking for alternative accommodation for the use of its Managing Director. Amadisco Construction Co Ltd was only able to complete the building on 30 July 2019, and the keys were duly handed over to the representatives of EPDC Ltd. Upon the receipt of the keys to house, and subsequent demand for the outstanding payment as stipulated under the contract, EPDC Ltd contended that Amadisco Construction Co Ltd is not entitled to further payment for breach of contract. The Company further argued that the contract between it and Amadisco Construction ceased to exist as at 15 January 2019 as a result of the breach, and thus, Amadisco Construction Co Ltd was on a frolic of its own after the said date.

- (a) Advice EPDC Ltd on the legality or otherwise of its action (8.5 Marks). ✓
- (b) Assuming that EPDC Ltd has agreed to pay the outstanding contract sum but was unhappy at incurring extra cost in finding alternative accommodation for its Managing Director due to the delay by Amadisco Construction Ltd. Explain the remedy(s) available to EPDC Ltd. (9 marks). ✓

Question 5

Blade & Co. (B&Co) wrote to several contractors inviting them to tender for the supply and installation of bath fittings in an estate they are developing. Sokari & Sons (S&S) put in a tender for bid of N40m. When the bids were opened, the prices submitted by the other companies who tendered ranged from N400m to N600m. B & Co immediately formally wrote S&S, accepting their bid. On receiving the letter, S&S immediately realised an anomaly had taken place and wrote back to B&Co explaining that their secretary had put a decimal point in the wrong place and the price quoted ought to have been N400m and not N40m.

Using only proper authorities answer the following:

- a. Discuss the nature of the "anomaly" described above giving valid reasons why you think so. (10 marks)
- b. Does the anomaly affect the validity of the contract between B&Co and S&S? Give reasons. (7.5marks)

Question 6

Relying solely on proper authorities, discuss the caveat emptor rule and its exceptions. (17.5 marks)

UNIVERSITY OF PORT HARCOURT

Faculty of Law

Year II Second Semester Examination - 2018/2019 Academic Session

Course: Constitutional Law II (PUL 211.1)

General Instruction: Answer FOUR from the six questions – TWO questions from each Part

Duration: 3 Hour

Date: Monday 4th November, 2019

QUESTIONS

PART A – Answer Question 1 and any of the other two questions

1. Two law students of the University of Aluta who are fully seised of their right of freedom of association decided to join associations of their choice on campus. While the male student joined the Blue Barret Confraternity, which is a well-known dangerous cult group on campus, the female student joined the Pepper-them Lesbian Club. None of these associations were registered with the school authorities. Upon becoming aware of this development, the school authorities charged both students for misconduct before the Students' Disciplinary Committee. While the female student appeared before the committee and insisted that she could only be tried by a court of law and not a mere committee, the male student declined the invitation of the committee. At the end, they were both found liable and expelled from the University. Still in the same University, a lecturer Dr. Aboki, while teaching his students, drew a cartoon where he represented the Vice Chancellor of the institution as a corrupt administrator. Upon getting wind of this incident, the Vice Chancellor instituted a case of gross insubordination and misconduct against the lecturer before the Staff Disciplinary Committee which invited Dr. Aboki, and he appeared. Without hearing from any of the parties, the Committee moved with everyone to the classroom where the cartoon was pasted and saw it for itself. Thereafter they saw no other need to hear from the parties on the ground of Res Ipsa Loquitur and proceeded to find the lecturer liable and dismissed him. You have been consulted by the two law students and Dr. Aboki. Advise them, on the basis of Nigerian Constitutional Law, on their various fundamental rights involved and their chances of getting redress before the court.

2. (a) 'The term 'judicial powers' was not defined throughout the length and breadth of the 1999 Constitution of Nigeria (as amended). Legal scholars have found it to be vague, nebulous and imprecise. Some have even described it as being chameleon-hued'. Examine the validity of this statement and discuss the various components of that term.

(b) Discuss any THREE of the following well-known judicial remedies in Nigeria:

(1) Certiorari; (2) Mandamus; (3) Prohibition; (4) Declaration

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Y.P.

Recall Later
Finance
Investigate
recall certificate

- ✓ 3. Examine the procedure for, and the possible challenges to, recalling an erring legislator under the 1999 Constitution of Nigeria (as amended).

PART B – Answer Question 4 and any of the other two questions

4. After running a tailoring business for 3 years, Benson felt it was time to venture into politics, particularly, to contest the 2020 election for the office of the President of Nigeria. Thus, he shut down his business, and joined the XYZ political party (registered by the Independent National Electoral Commission (INEC)) which duly cleared and sponsored him to contest the election. To be sure, Benson was born in England, to an English father and a mother who is a citizen of Nigeria by naturalisation. He had also not attained the age of 40 when he actually contested the election. In the area of academic qualification, Benson's candidacy rested on his Senior Secondary School education. However, even though Benson completed Senior Secondary School, he does not possess a Senior Secondary School Certificate, as his certificate was never released to him by the school given his non-payment of fees.

Relying on relevant provisions of the 1999 Constitution of Nigeria (as amended) and case law (where applicable), determine from the above hypothetical scenario whether or not Benson was duly qualified – in accordance with Section 131 of the Constitution of Nigeria (as amended) – to contest the 2020 election for the office of the President of Nigeria.

5. Sokary has just been elected President of Nigeria. He knows he has executive immunity under Section 308 of the 1999 Constitution of Nigeria (as amended), but is not sure about the scope and limits of this immunity. With the aid of the relevant constitutional provisions and case law on executive immunity, answer (with reasons) the following questions being asked by President Sokary:

- (a) Can he, while in office as President, be subjected to police investigation for an alleged offence?
- (b) Can civil legal action initiated against him in his personal capacity *before* he became President, be continued against him while in office as President?
- (c) Can he in his private capacity, while in office as President, initiate legal action for relief against an individual who is restricted – by Section 308 of the 1999 Constitution of Nigeria (as amended) – from initiating legal action against him during his period of office?
- (d) Where he is protected by immunity from legal action, can he waive his immunity as President in order to fully defend himself in court and clear his name of the alleged wrong?
- (e) Can civil action be brought against him, while in office, for an action he took in his official capacity as President?

- ✓ 6. Military rule, often occasioned by corrupt and inefficient civil rule in developing countries, truncates constitutionally guaranteed civil governments in these countries. Consequently, with particular regard to the rule of law, the doctrine of separation of powers and the concept of federalism, discuss the consequences of military rule in the Federal Republic of Nigeria.

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UNIVERSITY OF PORT-HARCOURT
FACULTY OF LAW
FIRST SEMESTER EXAMINATIONS 2018/2019 SESSION

PVL 211.1 – LAW OF CONTRACT 1

Instructions: Answer any FOUR Questions

Time Allowed: 3 Hours

Question 1

- (a) The basis of the common law of contract is bargain. Yet, it not every bargain that gives rise to a contract. Discuss (5.5 marks)
- (b) Write short notes on the following:
- (i) Formal contract (4 Marks)
 - (ii) Simple Contract (4 Marks)
 - (iii) Unilateral Contract (4 Marks)

Question 2

In any contract, there must be mutual promises, each of the promises consisting of a consideration for the other. Only a valuable consideration which is the price, at which the defendant's promise is bought, is recognised by law as capable of grounding a contract. Discuss with regard to the rules governing consideration (17.5 marks) ✓

Question 3

Consistent with the principle of freedom of contract is that parties have the freedom to insert what clause(s) they please exempting themselves from liability from one breach or another or even from a total breach. However, despite the legality of exemption clauses, their enforcement in certain circumstances has led to punitive and prejudicial consequences. This has made the court to be often resourceful in limiting or excluding the ambit of their application when interpreting them in contracts. Discuss with regard to the common law approach to exemption clauses. (17.5 marks) ✓

Question 4

- (a) As a general rule, acceptance of offer has no effect unless and until it is communicated to the offeror. Discuss (10 marks).
- (a) Tomori offered to sell his house located at Ozuoba to Wigwe for N10 million. It was agreed by the parties that the acceptance of the offer must be in writing. Wigwe was desirous of buying
- Cross offer*
Counter offer

the house for his hotel business but he was not happy with the selling price. He therefore sent a written note to Tomori accepting his offer but only if he was willing to sell the house for N9 million. This was rejected by Tomori who subsequently sold the house to Okonkwo, a spare parts dealer for the same N10 million. 2 days afterwards, Wigwe sent another written note accepting to purchase the house for the original price. Tomori informed him that he has sold the house to Okonkwo. Wigwe is aggrieved and is contemplating suing Tomori for a breach of contract. Advise him. (7.5 marks).

Question 5

(a) Tosin Aderayo, an 18 years old son of a rich and popular business man based in Port Harcourt, has just been offered admission to study Medicine and Surgery at the University of Port Harcourt, Choba. His ecstatic father bought him a 2018 Mercedes 230 GLK in order to enable him commute from home. While driving to school one day, Tosin saw the 2019 version of the car which is loaded with the latest accessories and is being offered for sale by Mekakus Investment Limited. He decided to acquire it and made an offer to Mekakus Investment Ltd to purchase the car for N18 million which was accepted. Tosin paid N12 million upfront and was allowed to take delivery of the car subject to the payment of the outstanding balance of N6 Million on 31 March 2019. However, the date came and passed without Tosin being able to fulfill his contractual obligation. All efforts by Mekakus Investment Ltd to recover the debt have proved abortive. The Managing Director of Mekakus Investment Limited is at his wit's end and has approach you for legal advice.

(i) Advise him on validity or otherwise of the contract with Tosin Aderayo. (7.5 marks)

(ii) Would your answer be different if Tosin Aderayo is the son of Dr Emma Tamuno, a junior lecturer at the University of Port Harcourt, Choba). (5 marks)

(b) From the scenario presented above, assuming that Tosin Aderayo paid the outstanding purchase price at the date agreed by the parties. However, he was able to do so based on a personal loan of N6 million granted to him by Mechino Bank PLC and after he fraudulently represented to the Bank that he was above 21 years old at the date of the loan transaction. Now, he has defaulted in paying off the loan and the Bank is considering suing him to recover the principal sum and outstanding interests. Advise Mechino Bank PLC. (5 marks).

Question 6

'Not everything that's said during the negotiations for a contract end up being the actual terms of the contract....' Discuss, while clearly analyzing the applicable parameters that are germane here. Give only legal positions. (17.5 marks)

**UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW**

Continuous Assessment Test -2nd Semester 2018/2019 academic session

Course: Law of Contract (PVL 212.2)

Instruction: Answer any TWO of the following questions

Duration: One (1) hour

Date: 3rd Sept. 2019

Questions

1. At common law, the traditional concept of duress was quite narrow. That problem was later ameliorated by equity. Discuss and illustrate using decided cases.
2. What is Lord Denning's view of the principle of bargaining power" in contracts?
3. Bisi is a widow and a very 'spiritual' woman. Her pastor has been her 'spiritual' Papa for 5 years now and she always finds his advice valid. Recently, Papa (as she fondly calls him), introduced her to Labake, the Head of a Protestant Order known as the Sisters of Progress. Bisi joined the Order and (according to her rules,) gave the N10m her husband left to her to the Order. A month later, Bisi overheard Labake calling Bisi stupid. Annoyed, Bisi has since left the Order and intended to sue for a refund of her N10m. Advise her.

Mark V. Bradley

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UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW
LLB. YEAR TWO (2) 2ND SEMESTER CONTINUOUS ASSESSMENT

COURSE: NIGERIAN LEGAL SYSTEM 11 (DIL 11.2.2)

INSTRUCTION: ANSWER ONE (1) QUESTION

DATE: WEDNESDAY 5TH SEPTEMBER, 2019

DURATION: 45MINS.

QUESTIONS

1a. what is internal conflict of law

b. What are the reasons for internal conflict?

c. What are the applicable laws in conflicts between different systems of customary law as it relates to:

(a) Succession

(b) Land case

2a. List and discuss briefly persons who are authorized to initiate Criminal Proceedings in Courts.

b. what are the functions of the Attorney General of the State/Federation. Support your answers with the relevant constitutional provisions

UNIVERSITY OF PORT HARCOURT

FACULTY OF LAW

LL.B II 2nd Semester Examination 2018/2019 Session

COURSE: ADMINISTRATIVE LAW II (PUL 203.2)

INSTRUCTION: Answer TWO (2) Questions from Part A and TWO (2) Questions from Part B

DATE: Wednesday, 16th October, 2019 DURATION: 3 Hours.

QUESTIONS

PART A

- ✓ 1. Delegated legislation may be described as a legislation made by virtue of the power conferred by the Constitution or a Statute which features as a primary legislation. Nevertheless, delegation of powers and authority in government is embedded in the origin of public sector governance, evolution of the sovereign state and the social contract of governance, conferred by the governed on government, to enhance good governance and thus transparency and accountability of government to the governed, towards overall public good in a country: Discuss this statement, and explain the general nature and control measures associated with delegated legislation. ✓
- ✓ 2. Explain what you understand by the term 'administrative decision and rule making'. Secondly, discuss the traditional procedures adopted by government administrative organs in the course of making rules designed to enhance the effectiveness of government in sovereign states around the globe. And thirdly, explain the factors governing administrative decision and rule making process in sovereign states.
3. Define administrative adjudication and explain its legal basis in Nigeria, as well as discuss the distinctions between administrative tribunals and regular courts of law. 1RAC

PART B

4. Alhaji Katanga was alleged to have misappropriated the sum of N6Million while acting as a Director of Coolman Construction Company, a registered Company under the Companies and Allied Matters Act of the Republic of Pitakwa. Consequently, the financial crimes law enforcement reGENCY of the Republic, known as the Pitakwa Financial Crimes Commission (PFCC), has since 2014 been investigating Alhaji Katanga. In 2015, Alhaji Katanga contested to be the Governor of Sumaru Sate during the Republic of Pitakwa's general elections of that year. He was duly elected and subsequently sworn into office as the Governor of Sumaru Sate. Two (2) months thereafter, the PFCC filed a legal action against Alhaji Katanga in the High Court of Sumaru State. Alhaji Katanga refused to appear before the Court. On the authority of judicial decisions, advise both parties of this legal action. Are there challenges associated with Law Suits against government functionaries and agencies?
- ✓ 5. Actions and decisions of administrative agencies could be brought before the regular courts for review. Are there available grounds for such review? If yes, are there remedies to assuage persons affected by such actions and decisions of administrative agencies?
6. Principal Officers of the University of Port Harcourt are involved in the day to day management of the institution. Write short notes on any three (3) Principal Officers of your choice.

UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW
LL.B YEAR TWO 2ND SEMESTER EXAMINATION- 2018/2019 SESSION
COURSE: NIGERIAN LEGAL SYSTEM II (PUL 222.2)

DATE: Monday, 28TH October, 2019

DURATION: 3 Hours

INSTRUCTIONS:

1. Answer four questions only out of the six questions
2. There is three sections-A, B & C
3. Answer one question from each of the Sections and any other one to make it four questions in total
4. Indicate the question and the section in your answer script clearly
5. Write your name and Matric No. in bold letters

SECTION A

QUESTION 1:

Mr. Barinem claimed against Mr. Kobani the sum of ₦3 million for special and general damages for trespass and nuisance committed by Kobani on Barinem's factory at Greatway Street in Port Harcourt. He filed an affidavit in support of his claim stating that considering the expenditure that he incurred in clearing the nuisance in order to put the factory back to use, the defendant will have no defence to the action. The court Registrar upon seeing this, immediately issued a writ of summons and marked it "Undefended List." The court then fixed a date for hearing on it, and caused the entire process to be served on Kobani. On receipt of these processes Kobani filed a motion on notice challenging the competence of the suit. The trial judge ruled that the suit was competent, dismissed the motion, gave judgment in favour of Barinem, and granted his reliefs as claimed. Kobani has appealed to the Court of Appeal. Explain very briefly on each of the following, citing relevant authorities:

- (i) Suitability of the claim for "Undefended List."
- (ii) Procedure for placement under the undefended list.
- (iii) The claim of special and general damages made by Mr Barinem.
- (iv) Kobani's chances of success at the Court of Appeal.
- (v) Other defects, if any, concerning this action.

QUESTION 2:

Chief Igwe Kalu was born and bred in Aba, Abia State. In 1965, he went to seek for greener pastures in Rivers State and became an industrialist there. He successively married three Ogoni women, and desiring to become part and parcel of the Ogonis,

UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW
Year Two, 2nd Semester Continuous Assessment Test
2018/2019 Session

COURSE: ADMINISTRATIVE LAW II (PUL 203.2)

INSTRUCTION: Answer any TWO (2) of the Three Questions

DATE: Thursday, 5th September, 2019 **DURATION:** 1 Hour

QUESTIONS

1. Government administrative organs feature as the oil that lubricates governance, such as they prevail as quasi-legislative, quasi-executive, quasi-judicial and quasi-law-enforcement organs. Discuss this statement in the context and framework of any Local Government Council of the Federal Republic of Nigeria of your choice.
2. Actions and decisions of government administrative agencies may be challenged by aggrieved parties instituting law suits. Consequently, there are remedies available to aggrieved parties, albeit subject to some requirements: Discuss!
3. Analyze the decision of the court in *Ransome Kuti v AG Federation & Ors* (1985) 2 NWLR (Pt. 6) 211, with respect to the challenges associated with instituting legal actions against government and its agencies.

charges against public
immunity
ouster clause
Non justiciability

2 factors